

23VECV03831 23VECV03831

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-09-24

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Case Number: 23VECV03831 Hearing Date: September 24, 2026 Dept: B

Tentative Ruling

Ruiz v. Saxon, Case no. 23VECV03831

Hearing date September 24, 2026

Plaintiff Ruiz's Petition to

Approve Minor's Compromise - UNOPPOSED

Plaintiffs

Ruiz, M. Hernandez, A. Hernandez and minor A. A. Hernandez sue defendant Saxon, trustee of the Lee Saxon Revocable Trust, for breach of lease. Plaintiffs alleged habitability defects and illegal lockout. A notice of settlement was filed. See 1/5/26 Notice. Plaintiff Ruiz petitions for approval of minor's compromise for A. A. Hernandez. The petition is unopposed.

Minor

plaintiff suffered emotional injuries as a result of the lockout and has fully recovered. Minor's Comp., paras. 5-9. Minor plaintiff is to receive \$15,000. Id. at para. 10. The total of proceeds to all plaintiffs is \$145,000. Id. at para. 11(b).

Minor

plaintiff received no treatment and incurred no medical expenses. Minor's Comp., para. 12(a). No attorney's fees are requested. Minor's Comp., para. 13(a). No costs are requested. Id. at para. 13(b). The net balance of \$15,000 is to be deposited into an insured account, subject to withdrawal only on authorization of the court. Id. at para. 18(b)(2). The funds are to be

deposited in a blocked, interest-bearing account at Chase Bank, PO Box 6185, Westerville, OH 43086. See Attch. 18b(2).

There

are two errors on the proposed minor's compromise. First, paragraph 15 erroneously states minor plaintiff is to receive \$150,000, not \$15,000. See Minor's Comp., para. 15. Second, paragraph 18(b)(2) indicates the funds are to be deposited in a financial institution in this state, but attachment 18b(2) states only the out-of-state PO Box to which the deposit will be mailed. See Attch. 18b(2). The attachment must state the branch name and location where the deposit will be held. See Minor's Comp., para. 18(b)(2).

The

terms of the minor's compromise are reasonable. The petition is unopposed. GRANTED contingent on the above errors being rectified.